



File No.: EXP202300298

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RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 8, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against A.A.A. (hereinafter the respondent). The initiation agreement was notified, and after analyzing the allegations presented, on February 1, 2024, the proposed resolution was issued, which is transcribed below:

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File No.: EXP202300298

PROPOSED RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On June 27, 2022, Mr. A.A.A. with NIF ***NIF.1 (hereinafter, the respondent) was sanctioned for the camera oriented towards the public road and the lack of a sign indicating a video surveillance area at ***ADDRESS.1, in file EXP202203839, proceeding with PS/00261/2022, in which the respondent proceeded to pay the imposed monetary sanction in advance.

SECOND: On December 12, 2022, Mr. B.B.B. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection. The complaint is directed against Mr. A.A.A. with NIF ***NIF.1, for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of Articles 5.1.c) and 13 of the General Data Protection Regulation (hereinafter, GDPR).

The reasons supporting the complaint are as follows:

The complainant states that in the establishment in question, a video surveillance camera is installed at the entrance, which is oriented towards the public road, without prior administrative authorization for this.

They provide images showing the location of the camera, along with a sign indicating a video surveillance area that lacks information on which address users and clients of the establishment can contact to exercise their rights regarding data protection.

The documents provided are:

- Photographic report

FOURTH: On June 8, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR and Article 13 of the GDPR, classified in Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and the respondent submitted a written statement of allegations in which, in summary, they stated that:

“On March 29, 2022, a file was initiated in which we were requested by the Spanish Agency for Data Protection for information, which was provided on May 5, 2022, corrected on May 18, 2022, and the initiation agreement of the file dated May 31, 2022, was responded to on June 14, 2022, in which proof of payment of the imposed sanction was attached.

The facts reported that led to the initiation of the 2022 file are the same as those described in the initiation agreement dated June 8, 2023, in which the installation of a video surveillance system located in the premises where they carry out their professional and commercial activity is reported. The sanctioning power can be defined as the capacity that public administrations have to monitor the conduct of citizens and correct it, if necessary and contrary to administrative order, through the imposition of sanctions. The conduct that is punished must be previously classified and its sanction

must be proportional to the damage caused, and it cannot be imposed, in any case, twice for the same unlawful act (principle of non bis in idem), when the authorship, the act, and the basis coincide in the same person.

This principle prevents, on one hand, that no one can be sanctioned twice for the same facts based on the same grounds; and on the other hand, in its procedural aspect, this principle also prevents the initiation of a new procedure in each of these orders (administrative and criminal) as a consequence of the effects of litispendence (pending litigation) and res judicata.

AGREE TO FILE THE FILE, given that the facts have already been sanctioned in a previous file, and the principle of legal certainty must be upheld by the Administration, based on the principle of "non bis idem."

SIXTH: Attached as an annex is a list of documents in the procedure.

From the actions carried out in this procedure and from the documentation in the file, the following has been established:

PROVEN FACTS

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FIRST: On June 27, 2022, the respondent was sanctioned by the chamber for public road orientation and the lack of a sign indicating a video surveillance area at ***ADDRESS.1, in file EXP202203839, with the PS/00261/2022 being processed, within which the respondent proceeded to pay the imposed monetary sanction in advance.

SECOND: The claimant states that a video surveillance camera is installed at the entrance of the claimed establishment, which is oriented towards the public road, without any prior administrative authorization for this. They provide images showing the location of the camera, along with a sign indicating a video surveillance area that lacks information on where users and customers of the establishment can direct their inquiries to exercise their rights regarding data protection.

THIRD: The respondent alleges that the reported facts are the same as those for which a file was opened in 2022. They request the closure of the file because the facts have already been sanctioned in the previous one, and the principle of legal certainty must be upheld by the Administration, based on the principle of "non bis in idem."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Allegations to the Initiation Agreement

In response to the allegations presented by the respondent entity, the following should be noted:

Article 63.3 of Law 39/2015, on the Common Administrative Procedure of Public Administrations, establishes, regarding the Specialties in the initiation of sanctioning procedures, the following:

3. New sanctioning procedures for acts or behaviors classified as infringements in which the offender persists continuously cannot be initiated as long as a first sanctioning resolution has not been issued, with executive character.

In light of the above, the allegations presented by the respondent are not accepted, because in the

case at hand, a first sanctioning resolution with executive character has already been issued, and the resolution dictated in the previous file is already final in the administrative route.

III

The image is a personal data

The physical image of a person, according to Article 4.1 of the GDPR, is personal data and its protection, therefore, is subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (image of individuals) carried out through the reported video surveillance system complies with the provisions established in the GDPR.

IV

Alleged infringement

Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful.

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD states that natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems with the aim of preserving the safety of persons and property, as well as their facilities.

Article 12.1 of the GDPR indicates that anyone who carries out the processing of personal data, such as capturing images through a video surveillance system, must provide the interested parties with the information indicated in Articles 13 and 14 of the GDPR.

In order for the information duty provided for in Article 12 of the GDPR to be fulfilled concisely and understandably for the affected party, the aforementioned Article 22 of the LOPDGDD provides for a "layered information" system in relation to video surveillance.

In this sense, the first layer must refer, at a minimum, to the existence of the processing (video surveillance), the identity of the controller, the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR, and where to obtain more information about the processing of personal data.

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The information of the second layer must be available in a place easily accessible to the affected party, whether it be an information sheet at a reception, cashier, etc., placed in a visible public space or on a web address, and must refer to the other elements of Article 13 of the GDPR.

It is not necessary to specify the precise location of the video surveillance equipment.

This duty of information will be considered fulfilled by placing an informative device in a sufficiently visible location, and at a minimum, at the entrances to the monitored areas, whether interior or exterior. In the event that the monitored space has several accesses, such a sign indicating the monitored area must be placed at each of them.

This information must be provided in advance - considering Recital 39 of the GDPR. The aim is to make the context of the surveillance clear.

The processing of personal data is subject to the other principles of processing contained in Article 5 of the GDPR. We will highlight the principle of data minimization contained in Article 5.1.c) of the GDPR, which states that personal data shall be "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed."

This means that in a specific processing operation, only the relevant personal data that is pertinent and strictly necessary to fulfill the purpose for which it is processed may be processed. The processing must be adjusted and proportional to the purpose it aims to achieve. Relevance in the processing of data must occur both at the time of data collection and in the subsequent processing that is carried out. In accordance with the above, the processing of excessive data must be restricted or the data must be

deleted.

The application of the principle of data minimization in the context of video surveillance implies that images of public roads cannot be captured, as the processing of images in public places can only be carried out by the Security Forces and Corps with prior governmental authorization.

On some occasions, for the protection of private spaces, where cameras have been installed on facades or indoors, it may be necessary to record a portion of the public road to ensure the security purpose.

That is to say, cameras and video cameras installed for security purposes may not obtain images of the public road unless it is essential for that purpose, or it is impossible to avoid it due to their location. In such extraordinary cases, the cameras may only capture the minimum portion necessary to preserve the safety of persons and property, as well as their facilities.

Under no circumstances will the use of surveillance practices beyond the environment subject to the installation be permitted, and in particular, it must not affect surrounding public spaces, adjacent buildings, and vehicles other than those accessing the monitored space.

The installed cameras may not capture images of third-party private spaces and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

Therefore, the placement of cameras directed towards the private property of neighbors with the intention of intimidating them or affecting their private sphere without a justified cause is not permitted. Images may not be captured or recorded in spaces owned by third parties without the consent of their owners, or, where applicable, of the persons present in those spaces.

Furthermore, it is disproportionate to capture images in private spaces, such as changing rooms, lockers, or rest areas for workers.

V

Obligations regarding video surveillance

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved in a less intrusive manner for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

2.- The images obtained may not be used for a subsequent purpose incompatible with the one that motivated the installation of the video surveillance system.

3.- The duty to inform the affected parties as provided in Articles 12 and 13 of the GDPR, and Article 22 of the LOPDGDD, must be fulfilled, in the terms already indicated.

4.- The processing of images through the installation of camera or video camera systems must be lawful and comply with the principles of proportionality and data minimization, in the terms already indicated.

5.- The images may be retained for a maximum period of one month, except in those cases where they must be retained to prove the commission of acts that threaten the integrity of persons, property, or facilities.

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In this second case, they must be made available to the competent authority within a maximum period of 72 hours from the moment knowledge of the existence of the recording is obtained.

6.- The data controller must maintain a record of activities of the processing carried out under their responsibility, which includes the information referred to in Article 30.1 of the GDPR.

7.- The data controller must conduct a risk analysis or, where applicable, a data protection impact

assessment, to identify the risks arising from the implementation of the video surveillance system, evaluate them, and, if necessary, adopt appropriate security measures.

8.- When a security breach occurs that affects the processing of cameras for security purposes, provided there is a risk to the rights and freedoms of individuals, it must be reported to the AEPD within a maximum period of 72 hours.

A security breach is understood as the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.

9.- When the system is connected to an alarm center, it may only be installed by a private security company that meets the requirements set forth in Article 5 of Law 5/2014 on Private Security, of April 4.

The Spanish Data Protection Agency provides access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

It is also of interest, in cases of processing low-risk data, the free tool Facilita (in the "Guides and tools" section), which, through specific questions, allows the data controller to assess their situation regarding the processing of personal data they carry out, and if applicable, generate various documents, informative and contractual clauses, as well as an annex with minimum recommended security measures.

VI

Possible administrative infringement

In accordance with the evidence available at this moment in the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the facts presented violate the provisions of Articles 5.1.c) and 13 of the GDPR, which could constitute the commission of two infringements classified in Article 83.5 of the GDPR, which states the following:

"The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of the data subjects under Articles 12 to 22; (...)"

For the purposes of the limitation period for infringements, the infringements indicated in the previous paragraph are considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall be subject to a limitation period of three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

- a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

- b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)

- h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law."

VII

Proposal for sanction

Article 58.2 of the GDPR establishes:

"Each supervisory authority shall have all of the following corrective powers indicated below:

(...)

- d) to order the controller or processor to ensure that the processing operations comply with the

provisions of this Regulation, where appropriate, in a specific manner and within a specified period; (...)

i) to impose an administrative fine in accordance with Article 83, in addition to or instead of the measures mentioned in this paragraph, depending on the circumstances of each particular case.” According to the provisions of Article 83.2 of the GDPR, the measure provided for in Article 58.2.d) of the aforementioned Regulation is compatible with the sanction consisting of an administrative fine.

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Regarding the violations of Articles 5.1(c) and 13 of the GDPR, taking into account the facts presented and without prejudice to the outcome of the procedure's instruction, it is considered that the sanction to be imposed would be an administrative fine. The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

In order to determine the administrative fine to be imposed, the provisions of Article 83.2 of the GDPR must be observed, which states:

“2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringements committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;
- h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;
- i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, the compliance with such measures;
- j) adherence to codes of conduct pursuant to Article 40 or to certification mechanisms approved under Article 42,
- k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

In relation to letter k) of Article 83.2 of the GDPR, the LOPDGDD, in its Article 76, “Sanctions and corrective measures,” provides:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2(k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The link of the infringer's activity with the processing of personal data.”

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- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party could have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) To have, when not mandatory, a data protection officer.
- h) The voluntary submission by the responsible party or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.

In the present case, the circumstance regulated in Article 83.2.e) of the GDPR applies as an aggravating factor (“any previous infringement committed by the responsible party or the processor”), as the claiming party has provided images, dated December 12, 2022, related to the location of the camera and the sign without all the information. These images are subsequent to the finality of the administrative resolution issued for voluntary payment in the previous sanctioning procedure, with the claimed party persisting in its conduct.

The balance of the circumstances considered, regarding the infringements committed by violating the provisions established in Articles 5.1 c) and 13 of the GDPR, allows for an initial assessment of a fine of 500 euros (five hundred euros), and another of 500 euros (five hundred euros), respectively.

It should be noted that the voluntary payment of the proposed amounts does not exempt from proving the regularization of the video surveillance system, in accordance with the current regulations.

VIII

Adoption of measures

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust its actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the responsible party or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...”. The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which could lead to the initiation of further administrative sanctioning procedures.

IX

Conclusion

In view of the above, the following is issued:

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PROPOSAL FOR RESOLUTION

That the Director of the Spanish Agency for Data Protection sanctions Mr. A.A.A., with NIF ***NIF.1, for an infringement of Article 5.1.c) of the GDPR and another of Article 13 of the GDPR, both classified under Article 83.5 of the GDPR, with a fine of 1,000 euros (one thousand euros).

That the Director of the Spanish Agency for Data Protection orders Mr. A.A.A., with NIF ***NIF.1, that

pursuant to Article 58.2.d) of the GDPR, within ten working days, prove that he has proceeded to remove the camera from its current location or to reorient it, in such a way that the viewing of the images shows that the public road is not captured. Furthermore, the sign indicating the video surveillance area must include information on the address to which users and customers of the establishment can direct themselves to exercise their rights regarding data protection.

Additionally, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that he may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be established at 800 € (eight hundred euros) and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that he opts to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, he must make it effective by depositing it into the restricted account No. IBAN: ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. Furthermore, he must send the proof of payment to the General Subdirectorate of Inspection to proceed with closing the file.

By virtue of this, he is notified of all the above, and the procedure is made known so that within TEN DAYS he may state whatever he considers in his defense and present the documents and information he deems pertinent, in accordance with Article 89.2 of the LPACAP.

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R.R.R.

INSTRUCTOR

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ANNEX

Index of file EXP202300298

12/12/2022 Claim by B.B.B.

08/06/2023 Initiation Agreement to A.A.A.

18/06/2023 Info. Claimant to B.B.B.

28/06/2023 Written submission from A.A.A.

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SECOND: On March 1, 2024, the respondent has proceeded to pay the fine in the amount of 800 euros, making use of the reduction provided for in the resolution proposal transcribed above.

THIRD: The payment made entails the waiver of any action or administrative appeal against the fine, in relation to the facts referred to in the resolution proposal.

FOURTH: In the resolution proposal transcribed above, the constitutive facts of the infringement were established, and it was proposed that the Director impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations, in accordance with the provisions of the aforementioned article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time...".

Having received a written communication from A.A.A. informing that they have adopted the necessary measures to prevent the reoccurrence of the facts constituting the infringement, this Agency acknowledges receipt of the same, without this declaration implying any pronouncement on the

regularity or legality of the measures adopted.

It is warned about the provisions of article 5.2 of the GDPR, which establishes the principle of proactive responsibility when it states that "The controller shall be responsible for compliance with the provisions of paragraph 1 and be able to demonstrate it." This principle refers to the obligation that falls on the controller not only to design, implement, and observe the appropriate legal, technical, and organizational measures to ensure that data processing is in accordance with the regulations, but also to remain actively attentive throughout the entire lifecycle of the processing to ensure that this compliance is correct, and to be able to demonstrate it.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness will be conditioned on the withdrawal or waiver of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: DECLARE the termination of the procedure EXP202300298, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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